ORDINANCE NO. 562

AN ORDINANCE TO REGULATE THE MOVEMENT OF THROUGH TRUCK TRAFFIC WITHIN THE CITY OF RECTOR, ARKANSAS.

WHEREAS, the unregulated movement of trucks is damaging the streets and highways of Rector, Arkansas, particularly those streets and highways which were not designed or constructed to carry such traffic, and

WHEREAS, the City Council of Rector, Arkansas, considers it in the best interests of the citizens of Rector, Arkansas, to restrict the movement of trucks to those streets and highways which have been constructed to withstand such usage:

NOW, THEREFORE, the City Council of Rector, Arkansas, states:

Section 1. Hereafter it shall be unlawful for any person, firm or corporation, or its agents, officers or employees, to operate any motor truck, truck-tractor with semi-trailer or any full trailer, either of which is of more than one ton capacity upon any street within the corporate limits of the City of Rector, Arkansas except for the following:

A. U. S. Highway No. 49.

B. Arkansas Highway No. 90.

Section 2. (a) This Ordinance shall not be construed to prohibit motor vehicle trucks from crossing municipal streets within the corporate limits at their intersections with U. S. Highway No. 49 and Arkansas Highway No. 90, (b) nor apply to delivery trucks serving the residents in the immediate corporate area, (c) nor shall this ordinance be construed so as to prevent any person living within the corporate limits of Rector, Arkansas from operating such trucks upon said streets where it becomes necessary for them to reach their homes.

Section 3. Any person, firm or corporation, or its agents, officers or employees who shall violate the provisions of Section 1 of this ordinance, upon conviction before a court of competent jurisdiction, shall be fined in any sum not less than twenty-five dollars ($25.00) nor more than fifty dollars ($50.00).

Section 4. This Ordinance being necessary to protect the pave-

ment upon said streets, and for the immediate preservation of the public health, peace and safety of said City, an emergency is hereby declared to exist and this Ordinance shall be in full force and effect from and after its passage, approval and publication.

Section 5. The City Street Department of the City of Rector shall post street signs showing the permissible truck routes and capacity thereon acceptable for trucks as designated herein.

Section 6. This Ordinance specifically repeals Section One (1) of Ordinance 360 of the City of Rector, Arkansas.

Section 7. Separability. In the event any covenant, phrase, clause, paragraph, section, condition or provision herein contained is held to be invalid by any Court of competent jurisdiction (Section 1 through 6), the invalidity of such covenant, phrase, clause, paragraph, section, condition or provision shall in no way affect any other covenant, phrase, clause, paragraph, section, condition or provision herein contained.

WITNESS my hand and seal this 14 day of ~~August~~ September, 1982.

Bill Vanlandingham
Bill Vanlandingham, Mayor

ATTEST:

Dorene Gordon
Dorene Gordon, Rec/Treas.